

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

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GABRIEL RODRIGUEZ,

Index No.

Plaintiff,

Date Purchased:

-against-

SUMMONS

THE CITY OF NEW YORK,

Plaintiff designates Bronx County as the place
of trial.

Defendant.

The basis of the venue is place of occurrence.

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: December 15, 2016
New York, New York

Defendant's Address:

TO: New York City
Zachary Carter-NYC Corporation Counsel
100 Church Street
New York, New York 10007

/ s /

Fred Lichtmacher
The Law Office of Fred Lichtmacher P.C.
Attorney for Plaintiff
116 West 23rd Street Suite 500
New York, New York 10011
(212) 922-9066

Notice: The nature of this action is for intentional torts as well as for negligence.

The relief sought: Compensatory damages in the amount of Two Million Dollars and an award to plaintiff of the costs and disbursements herein.

Upon your failure to appear, judgement will be taken against you by default for the sum sought with interest from September 17, 2015.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

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GABRIEL RODRIGUEZ,

Plaintiff,

-against-

COMPLAINT

Index No.

THE CITY OF NEW YORK CITY,

Defendants.

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Plaintiff, by his attorney, The Law Office of Fred Lichtmacher P.C., complaining of the
defendant herein, respectfully alleges as follows:

Nature of the Action

1 This action arises from the brutal assault on Gabriel Rodriguez by members of the New York City Police Officers on September 17, 2015.

Parties and Jurisdiction

2 Jurisdiction and venue for this action are appropriate pursuant to C.P.L.R. §504(3) because the incident which is the subject of this action occurred in Bronx County, in the city and state of New York.

3 Plaintiff Gabriel Rodriguez is a forty-three year-old Hispanic male and a citizen of the United States of America who, at all times relevant, resided in the State and City of New York.

4 The defendant THE CITY OF NEW YORK (NYC) is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York. Pursuant to its Charter, NYC has established, operates and maintains the New York City Police Department as a constituent department.

5 At all times relevant, NYC employed the police officers involved in the incident underlying this

action.

6 The employees of Defendant NYC involved in the incident giving rise to this litigation were at all times relevant agents, servants, and employees acting within the scope of their employment by defendant NYC.

7 The defendant NYC is vicariously liable to the plaintiff for the individual defendants' common law torts via the principle of *respondeat superior*.

8 New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).

Notice of Claim

9 On or about December 16, 2015, plaintiff filed a Notice of Claim against the defendant NYC.

10 A Hearing pursuant to General Municipal Law 50-h was conducted by the defendant on March 23, 2016 and that as of this date plaintiff's demand for payment has not yet been addressed by the defendant.

11 The Notice of Claim was in writing and was sworn to by the plaintiff.

12 The Notice of Claim contained the name and post office address of the plaintiff, the nature of the claims, the time when, the place where, and manner by which the claims arose, and the damages and injuries claimed to have been sustained.

13 Defendant NYC has failed to adjust the claims within the statutory time period.

14 Plaintiff brings this action within one year and ninety days of when his cause of action arose.

Statement of Facts

15 On September 17, 2015 at approximately 6:40 am, in an apartment building, located at 770 Garden St.Apt.# 6D, Bronx, NY 10468, Mr. Gabriel Rodriguez was severely beaten and injured by members of the NYPD while he was legally inside of said apartment and sleeping on a sofa in the

livingroom.

16 Mr. Rodriguez was hit with guns and closed fists on his face and torso while there was no need or justification to use any force, much less the aggressive, malicious and sadistic gratuitous force that was employed.

17 Subsequently, Mr. Rodriguez was thrown to the floor face down while members of the NYPD disingenuously kept stating “stop resisting arrest” as they continued beating him.

18 Mr. Rodriguez replied that he was not resisting arrest.

19 After the uniformed officers beat the plaintiff, two plain clothes officers further physically abused him by hitting him and by sitting on his back with their knees on him and by handcuffing him too tightly.

20 Mr. Rodriguez was screaming in agony telling the officers that he was in pain and that he did not know what was happening.

21 The two plain clothes officers exacerbated plaintiff’s injuries by picking him up by the handcuffs further injuring his wrists.

22 Plaintiff’s injuries include, but are not limited to fractured ribs, a lower back injury, an injury to his right wrist, abrasions to his neck, face, lips and the back of his head as well as several other harms.

23 There was no reason to use any force against the plaintiff much less the gratuitous, excessive, malicious force the officers employed.

FIRST CAUSE OF ACTION FOR BATTERY

24 Plaintiff repeats and realleges the prior paragraphs as though fully stated herein.

25 By the actions described above, the defendant NYC, via its agents and employees acting within the scope of their employment intentionally caused and allowed plaintiff to be struck in a harmful, offensive, unjustified and unconsented manner constituting the tort of battery.

26 By reason of the aforesaid, plaintiff was caused to sustain serious and severe personal injuries which are permanent in nature; has been and will be, caused great been caused to be incapacitated from his usual duties, activities and may in the future cause him additional pain and suffering; he has been and will be, caused to be rendered sick, sore, lame and disabled; has continued to be so incapacitated; has been and will be caused to expend large sums of money in an effort to cure himself of said injuries; was caused to be incapacitated from his usual duties and activities and may in the future continue to be so incapacitated.

27 By reason of the foregoing, plaintiff sustained damages in an amount of TWO MILLION (\$2,000,000.00) DOLLARS which is in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION FOR ASSAULT

28 Plaintiff repeats and realleges the prior paragraphs as though fully stated herein.

29 By the actions described above, the defendant NYC via its agents and employees acting within the scope of their employment intentionally caused plaintiff to be placed in apprehension of an imminent harmful and offensive contact constituting the tort of assault.

30 By reason of the aforesaid, plaintiff was caused to sustain serious and severe personal injuries which are permanent in nature; has been and will be, caused great been caused to be incapacitated from his usual duties, activities and may in the future cause him additional pain and suffering; he has been and will be, caused to be rendered sick, sore, lame and disabled; has continued to be so incapacitated; has been and will be caused to expend large sums of money in an effort to cure himself of said injuries; was caused to be incapacitated from his usual duties and activities and may in the future continue to be so incapacitated.

31 By reason of the foregoing, plaintiff sustained damages in an amount of TWO MILLION

(\$2,000,000.00) DOLLARS which is in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING, RETAINING AND TRAINING

32 Plaintiff repeats and realleges the prior paragraphs as though fully stated herein.

33 The defendant NYC, has negligently hired, retained and failed to adequately train the officers who beat the plaintiff thereby causing his harms.

34 The defendant NYC, was grossly negligent in supervising the police personnel herein by, among other things, failing to properly investigate prior incidents, and failing to take any disciplinary action against or remedial measures against those officers involved in the instant matter who NYC was aware had violent tendencies.

35 Plaintiff was in no way negligent in the happening of the aforesaid occurrence.

36 Defendant NYC's negligence includes, but is not limited to, the following;

37 NYC has failed to investigate the violent tendencies and predispositions of its officers, both prior to hiring and after they had been retained by the NYPD and beaten other people without reason, directly causing plaintiff's harms;

38 NYC has failed discipline and/or retrain its officers adequately after it was on notice of its officers' tendencies and predispositions to be violent, without legal justification, and by so failing NYC's actions and inactions, i.e., NYC's negligence, led directly to plaintiff's harms;

39 That NYC was on notice of the need to more selectively hire, train, discipline, retrain when necessary and generally oversee the actions of its officers and in so doing and in failing to so do, NYC has been negligent directly leading to plaintiff's harms.

40 By reason of the negligence of the defendant NYC as aforesaid, plaintiff was caused to sustain serious and severe personal injuries which are permanent in nature; has been and will be, caused great

been caused to be incapacitated from his usual duties, activities and may in the future cause him additional pain and suffering; he has been and will be, caused to be rendered sick, sore, lame and disabled; has continued to be so incapacitated; has been and will be caused to expend large sums of money in an effort to cure himself of said injuries; was caused to be incapacitated from his usual duties and activities and may in the future continue to be so incapacitated.

41 By reason of the foregoing, plaintiff sustained damages in an amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in an amount to be determined upon the trial of this action.

Request for Relief

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

- (A) Compensatory damages in the amount of TWO MILLION (\$2,000,000.00)
DOLLARS;
- (B) An award to plaintiff of the costs and disbursements herein;
- (C) Such other and further relief as this Court may deem just and proper.

Dated: New York, New York
December 15, 2016

The Law Office of Fred Lichtmacher, PC
Attorney for Plaintiff
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New York, NY 10011
(212) 922 - 9066

/ s /
By: Fred Lichtmacher

TO: New York City
Zachary Carter-NYC Corporation Counsel
100 Church Street
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